Discussion of Possible Revisions to Board Policy CH (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy CH Purchasing and Acquisition.

Explanation:
The Administration recommended revisions to Board Policy CH Purchasing and Acquisition. The Administration recommends that the updated Local Board Policy CH be adopted as presented.

Policy Reference: CH Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

Purchasing Authority

The Board delegates to the Superintendent or designee the authority to make budgeted purchases for goods or services. However, any purchase that costs or aggregates to a cost of $~~5~~100,000 or more to a single vendor over the course of a 12-month fiscal period ~~beginning September 1 of each year shall require Board approval before a transaction may take place.~~ shall be reported to the Board in a quarterly report. The District shall provide the Board a cumulative report in December, March, June and September, detailing year-to-date expenditures by vendor that exceed $100,000. Each report shall clearly identify all new vendors for the quarter and include the associated commodity category.

All contracts shall be signed by the Superintendent or designee.

Vendor Alignment

To ensure alignment with the District's adopted policies, educational goals, community standards, and all applicable state and federal laws, any vendor or contractor providing services through direct interaction with students—whether in person or via digital means such as online courses, video conferences, video streaming, or other virtual platforms—or through the development, delivery, or distribution of print or digital materials, shall, prior to purchase, acknowledge and agree through a process designed by the Superintendent and approved by the Board to comply with the requirements of **EMB (Local)**. This vendor alignment process specifically prohibits the inclusion of the following topics, except to the extent that the topic is expressly required as part of the Texas Essential Knowledge and Skills (TEKS):

1. Gender fluidity, sexual orientation, gender, transitioning;
2. Pronoun usage inconsistent with biological sex;
3. Social and Emotional Learning Concepts that are divisive, conflict with District policy, and are inconsistent with the District's education goals;
4. Critical Race Theory;
5. Systemic Discrimination Ideologies;
6. Diversity, Equity, Inclusion (DEI); and
7. Unpatriotic, anti-American sentiments.

This requirement includes, but is not limited to services involving curriculum design, in-district professional development concerning direct student outcomes, athletic or professional coaching, student advisory services, specialized lessons, or similar educational or instructional support activities.

Failure to adhere to the terms of this Vendor Alignment, or any verified misalignment with the District's policies or community values as stated, may constitute grounds for immediate termination of the contract, subject to applicable contractual and legal provisions.

Exception For Emergency Contracts

In the event of a catastrophe, emergency, or natural disaster affecting the District, the Board delegates to the Superintendent the authority to contract for the replacement, construction, or repair of school equipment or facilities in accordance with law, if emergency replacement, construction, or repair is necessary for the health and safety of District students and staff and so long as the total cost is no more than $100,000. The Superintendent shall report to the Board at the next regular meeting any contract made under this authority. [See Disaster Exception, CH(LEGAL)]

The delegation regarding emergency contracts does not waive competitive purchasing requirements under Education Code Chapter 44. Only the Board is authorized to waive competitive purchasing requirements under limited circumstances in accordance with Education Code 44.031(h). [See Emergency Damage or Destruction, CH(LEGAL)]

Purchasing Procedures

The Superintendent shall develop purchasing procedures to implement the requirements of state and federal law. [See also CB, CBB, CH(LEGAL), and COA]

Purchasing Method

The Board delegates to the Superintendent or designee the authority to determine the method of purchasing in accordance with CH(LEGAL) or CBB(LEGAL), as appropriate.

District contracts must be submitted to a competitive procurement process when the aggregate purchase costs $~~5~~100,000 or more for each 12-month period. The Superintendent or designee shall prepare the request for bids or proposals and the bid or proposal specifications. All bids or proposals shall be submitted by the designated purchasing method, either through the District's electronic procurement system or in sealed envelopes, plainly marked with the name of the bidder or proposer and the time of opening.

All bidders or proposers and other interested persons shall be invited to attend the bid or proposal opening as allowed by policy or by best practice if policy is not applicable but shall not be required to be present

Bid And Proposal Acceptance

The District may reject any and all proposals in accordance with state or federal law, as applicable. The Superintendent shall accept the bid or proposal deemed to be in the best interest of the District as identified in CH(LEGAL).

Bids, Quotes, and Other Proposals Under $~~5~~100,000

The director of purchasing shall establish guidelines that may require bids, quotations, or proposals to be obtained prior to approving a purchase when it appears that the best value and substantial savings can be realized by the District.

Electronic Bids Or Proposals

The District shall accept bids or proposals through electronic transmission in accordance with administrative procedures. Such procedures shall safeguard the integrity of the competitive procurement process, ensure the identification, security, and confidentiality of electronic bids or proposals, and ensure that the electronic bids or proposals remain effectively unopened until the proper time.

Responsibility For Debts

The Board shall assume responsibility for debts incurred in the name of the District so long as those debts are for purchases made in accordance with adopted Board policy and current administrative procedures. The Board shall not be responsible for debts incurred by persons or organizations not directly under Board control. Persons making unauthorized purchases shall assume full responsibility for all such debts.

Electronic Purchase Commitments

All purchase commitments shall be made by the Superintendent or designee on a properly drawn and issued purchase order, in accordance with administrative procedures.

Personal Purchases

District employees shall not be permitted to purchase supplies or equipment for personal use through the District's business office.